

RESOLUTION # _____

**A RESOLUTION AMENDING RESOLUTION #5820
APPROVING A PROPOSITION TO IMPOSE THE 1%
SPECIFIC PURPOSE SALES AND USE TAX IN LARAMIE
COUNTY, STATE OF WYOMING, FOR THE EXCLUSIVE
PURPOSE OF FUNDING SPECIFIC PURPOSES FOR
SPECIFIC AMOUNTS; THE PROPOSITIONS TO BE
VOTED ON AT A SPECIAL ELECTION TO BE HELD MAY
2, 2017.**

WHEREAS, pursuant to WYO. STAT. §§ 39-15-203(a)(iii), 39-15-204(a)(iii), 39-16-203(a)(ii), 39-16-204(a)(ii), and 39-16-202(e) counties may impose an excise tax not to exceed two percent (2%) upon retail sales of tangible personal property, admissions and services made, and upon storage, use and consumption of tangible personal property, within the county, for specific purposes and in specific amounts as authorized by the qualified electors of the county (hereinafter the “Tax”); and

WHEREAS, the Board of County Commissioners (the “Commissioners”) of Laramie County, State of Wyoming, (the “County”), in response to the needs of the County and requests received from the City of Cheyenne, the Town of Pine Bluffs, the Town of Burns, and the Town of Albin (hereinafter, being sometimes individually referred to as “Sponsoring Entity” and collectively referred to as the “Sponsoring Entities”), has determined to make a source of funding available through imposition of an excise tax not to exceed one percent (1%) in the following specific amounts for the following specific purposes (the “Projects”):

Proposition 1

1. \$21,118,500 and interest earned thereon to Laramie County for the remodel and expansion of the existing Laramie County Courthouse to provide courtroom and office space for a fourth District Court Judge authorized by the Wyoming Legislature along with building systems and physical plant upgrades, repairs and replacement and, as said remodel replaces the space currently used by Municipal Court, with the construction of a new annex addition to the Laramie County Courthouse to house the City of Cheyenne Municipal Court and include future expansion space for Laramie County.

Proposition 2

2. \$16,176,680 and interest earned thereon to Laramie County to construct an addition on the existing Laramie County Detention Center for the purpose of expanding inmate capacity, for adding additional administrative space and for updating and improving existing infrastructure of the current facility.

Proposition 3

3. \$15,000,000 and interest earned thereon to the City of Cheyenne to construct Christensen Road between Commerce Circle and U.S. Highway 30 including a new bridge over the Union Pacific Railroad.

Proposition 4

4. \$9,885,000 and interest earned thereon to the Laramie County Fair Board to be used for the design, construction, equipping, and furnishing of a Multi-Purpose Facility at the Laramie County Archer Complex. The proposed facility will be an open-span building that will host a variety of events year-round for both residents and visitors, including Trade Shows, Expositions, Sporting Events, RV Rallies, Concerts, and Horse and Stock Shows. The Archer Complex was purchased in 2004 by Laramie County for the purpose of a Multifunctional Campus for citizens to use and enjoy year-round.

Proposition 5

5. \$11,970,000 and interest earned thereon to the Town of Albin, the Town of Burns, the City of Cheyenne, the Town of Pine Bluffs, and the Laramie County Fire District, as follows:
 - a. \$200,000 to the Town of Albin to provide adequate housing expansion;
 - b. \$200,000 to the Town of Burns to construct a gravel road; address parking, watering issues, and other needed improvements;
 - c. \$950,000 to the Town of Pine Bluffs to make electric infrastructure repairs and upgrades;
 - d. \$2,350,000 to the City of Cheyenne for street improvements in the area of greatest need as determined by the Pavement Management Program and the annual in-house road and street assessment;
 - e. \$3,800,000 to the City of Cheyenne for planning, design, and construction of the Greater Cheyenne Greenway, of which no less than \$800,000 will be designated for operation and maintenance of existing and future pathways and system;
 - f. \$80,000 to the Town of Albin to purchase, install, operate and maintain emergency generators for an emergency shelter (Community Center) and emergency water source to be used during extended electrical outages and other emergency situations;
 - g. \$2,000,000 to the Town of Pine Bluffs as funds needed to complete Phase 1 of a Clean Water System Renovation;

- h. \$390,000 to the Town of Pine Bluffs to construct and maintain a new Public Works Facility;
- i. \$2,000,000 to the Laramie County Fire District #1 for the construction of a new fire station located at the Archer Complex to provide increased fire protection and emergency medical services to the eastern portion of Laramie County.

Proposition 6

- 6. \$11,969,000 and interest earned thereon to the City of Cheyenne, the Town of Burns, the Town of Albin, and Laramie County, as follows:
 - a. \$6,750,000 to the City of Cheyenne to design and construct a multipurpose indoor turf facility suitable for youth and adult games, practices and regional athletic tournaments, of which no less than \$750,000 will be designated for operations and maintenance;
 - b. \$550,000 to the Town of Burns for remodeling, maintenance and operations for town owned buildings;
 - c. \$80,000 to the Town of Albin for operation and maintenance of a new water meter system;
 - d. \$1,014,000 to the Town of Burns for completion of drainage and elevation mapping, maintenance and reconstruction of town streets;
 - e. \$3,500,000 to Laramie County for the purchase, operation and maintenance of radio towers and radio equipment to improve Laramie County radio coverage;
 - f. \$75,000 to the Town of Pine Bluffs to refurbish recreational facilities.

Proposition 7

- 7. \$14,870,000 and interest earned thereon to the Town of Albin, the Town of Burns, the Town of Pine Bluffs, Laramie County, and the City of Cheyenne, as follows:
 - a. \$80,000 to the Town of Albin to replace a current storage building (“Old Fire Hall”) with a bigger, up-to-date building to store garbage trucks, town vehicle, and other equipment, which includes future operation and maintenance costs;
 - b. \$200,000 to the Town of Burns for the purchase of a dump truck and attachments;

- c. \$200,000 to the Town of Albin to replace the parking lot surface at the Town Hall/Community Center Building;
- d. \$40,000 to the Town of Pine Bluffs to upgrade the town cemetery;
- e. \$1,000,000 to Laramie County for an emergency services storage and medication distribution facility for emergency Management and Cheyenne/Laramie County Public Health;
- f. \$7,050,000 to the City of Cheyenne to design and construct basketball and volleyball courts and gymnastics facilities at the Ice and Events Center and consolidate staff offices into one location, of which no less than \$750,000 will be designated for operations and maintenance;
- g. \$300,000 to the Town of Burns to complete the 4th St. Sewer line, including operation and maintenance of town sewer system;
- h. \$6,000,000 to the City of Cheyenne for the Repair and Refurbishment of existing Fire Stations and Fire Engines.

Proposition 8

- 8. \$8,848,000 and interest earned thereon to the Town of Albin, the City of Cheyenne, the Town of Pine Bluffs, and the Town of Burns, as follows:
 - a. \$53,000 to the Town of Albin to purchase a utility pick-up truck with tool boxes, crane, and other equipment for the town's Maintenance Department;
 - b. \$3,500,000 to the City of Cheyenne for street improvements in the area of greatest need as determined by the Pavement Management Program and the annual in-house road and street assessment;
 - c. \$800,000 to the Town of Albin for completing the replacement of deteriorating sewer lines dating from 1950's;
 - d. \$1,050,000 to the Town of Pine Bluffs for Debt Reduction;
 - e. \$3,200,000 to the City of Cheyenne to purchase and preserve land for a future community park located in east Cheyenne, with any remaining funds to be allocated to initial design and development of the park;
 - f. \$195,000 to the Town of Pine Bluffs to replace Town equipment;
 - g. \$50,000 to the Town of Burns for the purchase of new radios, pagers, and other equipment needed for communications.

Proposition 9

9. \$11,700,500 and interest earned thereon to Laramie County, the City of Cheyenne, the Town of Pine Bluffs, the Town of Albin, and the Town of Burns, as follows:
 - a. \$950,500 to Eastern Laramie County Solid Waste Disposal District for the purchase of a new Scraper and an addition to current equipment shop;
 - b. \$3,000,000 to Laramie County to enhance computer based technology that will allow City Fire, County Fire Districts and County Emergency Medical Services to operate on the same computer system as the City PD, County Sheriff's office, and the Combined Communications Center (9-1-1 dispatch);
 - c. \$2,000,000 to Laramie County Fire District #2 for the construction of a new fire station located at I-25 and Iron Mountain Road. This station will increase protection and decrease response times. It will allow for firefighter quarters and housing for modern fire trucks;
 - d. \$4,000,000 to the City of Cheyenne's West Edge District to construct infrastructure and enhancements and apply for additional grant monies supporting redevelopment, including the Reed Avenue Rail Corridor;
 - e. \$450,000 to Laramie County for the purpose of updating the Sheriff's Department video recording systems and for additional needs related to technology updates;
 - f. \$300,000 to the Town of Pine Bluffs to assist in a four-year street maintenance and repair plan;
 - g. \$200,000 to the Town of Albin to replace existing water lines with newer, up-to-date lines throughout the town;
 - h. \$200,000 to the Town of Albin for repairs and maintenance to the Community Center, including shelving, gym bleachers, and kitchen and bathroom upgrades;
 - i. \$200,000 to the Town of Burns for improvements to town owned parks including Liberty Park completion;
 - j. \$400,000 to the Town of Burns for improvements to town water and sewer systems as needed, to include operations and maintenance.

WHEREAS, the Commissioners have determined that a 1% Specific Purpose Sales and Use Tax should be imposed within the County pursuant to WYO. STAT. §§ 39-15-203(a)(iii), 39-15-204(a)(iii), 39-16-203(a)(ii), 39-16-204(a)(ii), and 39-16-202(e) in order to fund the planning, construction, furnishing, equipping, acquisition and improvement of land and, to the extent necessary and allowed by law, the pledge to or payment of operation and maintenance, debt service and/or lease service payments thereon, and, if necessary and/or available, to be used to leverage or match federal/and or state grant funds, for the above-referenced Projects; and

WHEREAS, the Commissioners have determined it is necessary to submit the proposition for imposition of the Tax to the qualified registered electors of the County; and

WHEREAS, pursuant to the provisions of WYO. STAT. §§ 39-15-203(a)(iii)(A) and 39-16-203(a)(ii)(A), before any proposition to impose the Tax shall be placed before the electors of the County, the Commissioners and the governing bodies of at least two-thirds (2/3) of the incorporated municipalities within the County shall adopt a resolution approving the propositions, setting forth a procedure for qualification of a ballot question for placement on the ballot, and specifying how excess funds shall be expended; and

WHEREAS, the Commissioners have proposed an authorization resolution detailing the propositions to be placed before the electorate;

NOW THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, STATE OF WYOMING, that the City of Cheyenne is in accord with the Authorizing Resolution as proposed, a copy of which is attached as EXHIBIT A and by this specific reference made part hereof.

BE IT FURTHER RESOLVED that passage of this resolution by the governing body of the City of Cheyenne shall constitute approval as required by WYO. STAT. § 39-15-203 (a)(iii)(A) and WYO. STAT. § 39-16-203 (a)(ii)(A).

BE IT FURTHER RESOLVED that if any part or provision of this resolution is ever determined to be invalid or unenforceable, such determination shall not affect the remaining parts and provisions hereof, the intention being that each part or provision of this resolution is severable.

ADOPTED AND APPROVED as of the _____ day of _____, 2017.

CITY OF CHEYENNE

(SEAL)

Marian J. Orr, Mayor

ATTEST:

Carol Intlekofer, City Clerk